PRG-1013685

National Tony Roma's Cheese 3/2/14-8/22/15

Program Category: **CA - Indirect - Fixed PRICE**
Eligible Dates: **March 02, 2014 to August 22, 2015**
Program Volume: **3,473 Cases / 46,219 Pounds**

Eligible Operators

TONY ROMA'S ALBERT'S [0140105866]
EDMONTON, AB

Eligible Distributors

GFS Edmonton [CA6001483]
Edmonton, AB

Notes

System Load Deals - Sep 30 2014 - (Mass Program Change - 03/02/2014)

Terms and Conditions

CONTRACT RATE INFORMATION

The contract rate per item will be stated as follows:

I. Fixed Price $ UOM

CONTRACT DETAILS

I. This offer will be deemed accepted with the first purchase made under the terms of said offer. Should you have any questions regarding this offer, please do not hesitate to call.

II. Pricing for all products with dairy components are subject to change by Kraft following dairy ingredient cost changes announced by the Canadian Dairy Commission.

III. The Effective start and end dates will define the contract period.

IV. Fixed Price - The maximum price at which Kraft will supply product to your authorized distributor for your orders is the Kraft distributor list price billed back to the contract price specified in this contract. The contract price is fixed for the duration of the contract.

V. Supporting Documentation is required for all Headquarter Rebate requests:

a. Distributor Name with company location and Contract Number

b. Kraft contract number

c. Shipment dates for each sales transaction

d. Customer name, Distributor customer number, rate of rebate by product along with complete unit address information

e. Kraft product code number

f. Description of product item pack, size, item brand & UOM

g. Total cases sold

h. Requested case rates per product and total rebate dollar amount per product

VI. Kraft Canada reserves the right in its discretion to amend, revise, or terminate this contract at any time upon 60 days notice where Kraft believes that the contract volume will not be achieved.

VII. This contract does not automatically renew and is only valid for the dates stated above within this contract.

CONTRACT PAYMENT CALCULATION & SETTLEMENT

I. Any errors in submissions to claim Headquarter Rebate will be reviewed by Kraft for compliance with the terms of the contract. Kraft may at its discretion approve the claim submission, or not approve it, or amend this contract where the error is determined to be in the terms of this contract.

Accepted By:		Accepted By:	GFS Edmonton
Name:		Name:	
Signature:		Signature:	
Date:	February 20, 2015	Date:	